

U.S. DEPARTMENT OF AGRICULTURE
WASHINGTON, D.C. 20250

DEPARTMENTAL REGULATION	NUMBER: DR 4600-004
SUBJECT: Foreign Visits and Assignments Vetting	DATE: May 27, 2021
OPI: Office of Homeland Security	EXPIRATION DATE: May 27, 2026

<u>Section</u>	<u>Page</u>
1. Purpose	1
2. Special Instructions/Cancellations	1
3. Scope	2
4. Background	2
5. Policy	3
6. Roles and Responsibilities	4
7. Penalties and Disciplinary Actions for Non-Compliance	7
8. Policy Exceptions	7
9. Inquiries	8
Appendix A – Acronyms and Abbreviations	A-1
Appendix B – Definitions	B-1
Appendix C – Authorities and References	C-1
Appendix D – Sample Memorandum for State Sponsors of Terrorism Approvals	D-1

1. PURPOSE

This Departmental Regulation (DR) establishes the United States Department of Agriculture (USDA) policy for processing and vetting non-United States (U.S.) Citizen visits and assignments.

2. SPECIAL INSTRUCTIONS/CANCELLATIONS

- a. This directive is effective upon publication and remains in effect until it is superseded or expires.
- b. This regulation supersedes the following memoranda:

- (1) Memorandum from James R. Moseley, Deputy Secretary, Office of the Secretary (OSEC), *Termination of USDA Sponsorship of Foreign Research Scientists and Submission of Waiver Recommendations for Foreign Physicians*, February 27, 2002.
- (2) Memorandum from James R. Moseley, Deputy Secretary, OSEC, *USDA Sponsorship of Non-citizens to Work in USDA Facilities*, May 6, 2003.
- (3) Memorandum from Edward Knipling, Administrator, Agricultural Research Service (ARS), *Clearance Procedures for Non-Citizens to Work in ARS Facilities*, May 19, 2003.
- (4) Memorandum Update from Edward Knipling, Administrator, ARS, *Non-citizens in ARS Facilities*, May 10, 2004.
- (5) Memorandum from Mr. Todd H. Repass, Jr., Director, Office of Homeland Security and Emergency Coordination (OHSEC), *Strengthening U.S. Department of Agriculture Visitor Policy*, May 21, 2014.

3. SCOPE

This DR applies to all Mission Areas, agencies, staff offices, USDA operated facilities (e.g., owned, leased, occupied) in the U.S., Federal employees, and any category of non-Federal person who performs duties in partnership with or on behalf of USDA, such as a consultant, contractor, cooperator, affiliate, advisor, fellow, volunteer, student, or intern, whether onsite or by remote access.

4. BACKGROUND

USDA is mandated by [Executive Order \(E.O.\) 12977](#), *Interagency Security Committee (ISC)*, to protect Government property and facilities; restrict access to certain areas and materials; protect sensitive and Controlled Unclassified Information (CUI); and ensure the health, safety, and security of Federal and non-Federal employees in our facilities. In fulfilling this mandate, USDA strives to take necessary actions and implement systems in a manner that protects its interests without negatively impacting its domestic and international cooperation efforts and the fulfillment of needs that are dependent upon collaboration.

Collaboration with domestic and foreign governments, organizations, and individuals has always been a critical component of USDA's ability to carry out its mission. These collaborations benefit USDA and the Nation by strengthening and advancing scientific research and development, enhancing understanding of agricultural and natural resource management issues, and allowing nations to pool resources to work together, particularly in emergency situations.

USDA must take appropriate security precautions that allow the Department to meet its needs while also managing risks in accordance with best practices identified by the ISC. Certain non-U.S. Citizen access to Federal facilities and information requires close coordination with security elements. The goal of non-U.S. Citizen vetting is an understanding of the individual's background to determine the risks associated with granting access to the Department's facilities, personnel, programs, information, and systems.

In addition, USDA must strengthen its protections of its Research and Development (R&D) against foreign government interference and exploitation by controlling access to and utilization of our research facilities and information in accordance with [National Security Presidential Memorandum \(NSPM\) 33](#), *United States Government-Supported Research and Development National Security Policy*.

5. POLICY

a. The following categories of non-U.S. citizens require a name trace check:

- (1) Any non-U.S. Citizen, to include all Lawful Permanent Residents (LPR), working on assignment with USDA in the U.S., whether onsite or by remote access, whose assignment would include access to CUI or protected information, restricted spaces, or access to the USDA Information Technology (IT) architecture. This applies to Federal employees and any category of non-Federal person working with USDA, such as a J-1 Visa Exchange Visitor, consultant, contractor, cooperator, affiliate, advisor, fellow, volunteer, student, intern, or research collaborator. This also includes university affiliated individuals that may have such access during collaborations with USDA.
- (2) Any non-U.S. Citizen, to include all LPRs, visiting a USDA facility in the U.S. whose visit would include access to CUI or protected information, restricted spaces, or access to the USDA IT architecture.
- (3) Any non-U.S. Citizen, to include all LPRs, visiting or on assignment at USDA in the U.S. whose country of nationality is listed on the U.S. Department of State (DOS) [State Sponsors of Terrorism](#) website. (see State Sponsors of Terrorism Requests subsection 5c below).
- (4) Any non-U.S. Citizen, to include all LPRs, visiting or on assignment at USDA in the U.S. that the Department, Mission Area, agency, or staff office considers to be an increased security concern due to the subject matter that will be discussed or the sensitivity of the location.

b. The following categories of non-U.S. citizens do not require a name trace check:

- (1) Any non-U.S. Citizen, including a family member, visiting or on assignment at a USDA facility in the U.S. who will not access CUI or protected information,

restricted spaces, or have access to the USDA IT architecture. The individual must not be national from a country listed on the DOS [State Sponsors of Terrorism](#) website.

- (2) Dual U.S. Citizens.
 - (3) Any foreign diplomat whose sole purpose of their visit is to meet with a principal from the Office of the Secretary (i.e., Secretary, Deputy Secretary, Chief of Staff, Deputy Chief of Staff, and Under Secretary offices).
 - (4) Any non-U.S. Citizen attending an event that is open to the public on USDA property. Visitors in public areas or to events open to the public may be provided alternate security instructions by the Chair of the Facility Security Committee.
 - (5) Any non-U.S. Citizen receiving a waiver from the Director of the Office of Homeland Security (OHS) with USDA, including State Sponsors of Terrorism requests.
- c. Visitor access requests to a USDA facility in the U.S. for non-U.S. Citizens from a country on the DOS [State Sponsors of Terrorism](#) website require approval by the Agency Administrator, or Staff Office Director before the visit can be approved. Once approved, subsequent access requests to the hosting site for the same non-U.S. Citizen may be approved by the Approval Authority for that USDA facility.
 - d. Once OHS issues a favorable name trace response, the sponsoring designated Foreign Visits and Assignments (FVA) point of contact (POC) must prepare, submit, and receive approval on a Request for Approval memorandum before allowing a non-U.S. Citizen from a country on the DOS [State Sponsors of Terrorism](#) website to visit or be assigned to a USDA facility.
 - e. The name trace check supplements, but does not replace, any required credentialing, fitness, or suitability background investigation requirements.

6. ROLES AND RESPONSIBILITIES

- a. The Secretary of Agriculture, in accordance with [7 Code of Federal Regulations \(CFR\) § 2.95](#), has delegated responsibility for matters relating to anti-terrorism, counterintelligence, and insider threats to the OHS Director.
- b. The OHS Director will:
 - (1) Determine the overall policy for the vetting of non-U.S. citizens visiting or on assignment to USDA;

- (2) Provide guidance to the designated FVA POCs for the implementation of USDA's vetting program and monitor compliance across USDA;
 - (3) Conduct initial name trace checks as requested by Mission Areas, agencies, and staff offices, and subsequent name trace checks every 2 years at a minimum, as part of continuous vetting;
 - (4) Develop and maintain an internal tracking system to track name trace checks, assessments, and access denials;
 - (5) Serve as the POC for intelligence agencies on any potential counterintelligence (CI) or insider threat issue concerning non-U.S. Citizens at USDA facilities;
 - (6) Educate Designated FVA POC(s) about the DOS [*State Sponsors of Terrorism*](#) website;
 - (7) Distribute billing rates for name trace checks from the Department of Homeland Security (DHS) each fiscal year to the Designated FVA POCs; and
 - (8) Maintain all name trace records in accordance to the National Archives and Records Administration (NARA), [*General Records Schedule \(GRS\) 5.6: Security Records*](#) (Items 110 and 111, *Visitor Processing Records*), and [*DR-3080-001, Records Management*](#).
- c. Mission Areas, Agencies, Staff Offices Heads or Designated Officials will:
- (1) Ensure visitor management controls are in place at their respective facilities;
 - (2) Assign at least one primary FVA POC and one alternate FVA POC for their organization, and provide those assignments in writing to the OHS Director;
 - (3) Ensure internal policies and procedures provide uniform and standardized guidelines for non-U.S. Citizen visits and assignments;
 - (4) Support and implement this policy throughout their respective facilities;
 - (5) Fund name trace checks for their respective facilities;
 - (6) Respond to OHS CI or insider threat inquiries on requests for information pertaining to non-U.S. Citizens in their respective facilities; and
 - (7) Ensure requests to visit a USDA facility in the U.S. for non-U.S. Citizens from a country listed on the DOS [*State Sponsors of Terrorism*](#) website receive approval at the Mission Area, Agency, or Staff Office Administrator level before the visit is allowed.

d. Designated FVA POCs will:

- (1) Maintain, at a minimum, a public trust position designation;
- (2) Centrally manage foreign access management for their Mission Area, agency, or staff office;
- (3) Create and maintain a centralized, secure, unclassified non-U.S. Citizen visitor tracking database until a Departmentwide visitor tracking system is available;
- (4) Be familiar with the DOS [*State Sponsors of Terrorism*](#) website;
- (5) Work with hosts to ensure required name trace checks are requested prior to a non-U.S. Citizens arrival date at a USDA facility in the U.S.;
- (6) Provide OHS with statistical data and reports from their respective tracking databases, as requested;
- (7) Periodically conduct tracking system compliance checks to ensure information in the database is up-to-date and accurate, to include marking individuals as inactive upon departure from USDA;
- (8) Coordinate and process any State Sponsors of Terrorism justification requests and non-U.S. Citizen name trace exceptions for review and approval; and
- (9) Maintain related documentation on non-U.S. citizens in accordance with the NARA GRS 5.6: *Security Records* (Items 110 and 111), and DR-3080-001.

e. Hosts will:

- (1) Update their Mission Area, agency, or staff office non-U.S. Citizen visitor tracking database with all required data for each non-U.S. Citizen visitor or assignee, including the start and end dates for each period of activity;
- (2) Ensure all required information is included in the submission of a non-U.S. Citizen name trace check request and that the request is submitted within the timeframe provided by OHS that are necessary in order to receive a timely result prior to the estimated arrival date;
- (3) Ensure that non-U.S. Citizen visitors do not access unauthorized areas (in accordance with their site security plan), CUI or protected information, restricted spaces, or USDA IT architecture;
- (4) Ensure the non-U.S. Citizen on assignment does not have access to USDA assets outside of their scope of work;

- (5) Ensure all non-U.S. Citizen visitors are escorted by a USDA Federal employee at all times, or as deemed appropriate by their facility Security Plan or local operating procedures;
 - (6) Notify the OHS Personnel and Document Security Division (PDSD), Classified National Security Information Staff (CNSIS) at CNSIS@usda.gov if there are specific security concerns regarding proximity to secure space; and
 - (7) Respond to OHS requests for information needed to conduct name trace checks under continuous vetting.
- f. USDA Employees or Non-Federal Persons Acting for or on Behalf of USDA will:
- (1) Complete any required CI or Insider Threat awareness training assigned in AgLearn based on their position; and
 - (2) Report any potential security anomalies, suspicious behavior, concerns, or incidents regarding non-U.S. Citizen visitors or assignees to OHS at CI@usda.gov. A favorable name trace check or background investigation does not eliminate all risk. Contact your local law enforcement or nearest Federal Bureau of Investigation (FBI) field office if you have any immediate national security or terrorism concerns. You can locate the appropriate FBI field office by visiting the FBI [Field Offices](#) webpage. The FBI will coordinate with USDA on reported concerns.

7. PENALTIES AND DISCIPLINARY ACTIONS FOR NON-COMPLIANCE

- a. [DR 4070-735-001](#), *Employee Responsibilities and Conduct*, Section 16 sets forth USDA policy, procedures, and standards on employee responsibilities and conduct regarding the use of computers and telecommunications equipment. DR 4070-735-001, Section 21, states that a violation of any of the responsibilities and conduct standards contained in this directive may be cause for disciplinary or adverse action; and
- b. Such disciplinary or adverse action will be affected in accordance with applicable law and regulations, such as Office of Personnel Management and Office of Management and Budget regulations, and Title [5 CFR § 2635](#), *Standards of Ethical Conduct for Employees of the Executive Branch*.

8. POLICY EXCEPTIONS

Non-U.S. Citizen Name Trace Exceptions

The OHS Director may grant exceptions in extraordinary circumstances, if a Mission Area, agency, or staff office is unable to meet the submission timeliness and completion of a name trace check before a non-U.S. Citizen arrives at a USDA facility in the U.S. This exception

will allow the individual to come onsite. The individual must have a continual Federal employee escort and will not be allowed computer network access (standalone use only) until favorable completion of the name trace. The waiver request must be in writing, justify the immediate need, and must be signed by the Under Secretary, or responsible agency or staff office head.

9. INQUIRIES

All USDA Mission Areas, agencies, and staff offices will direct questions and inquiries regarding this DR to FVALiaison@usda.gov.

-END-

APPENDIX A

ACRONYMS AND ABBREVIATIONS

ARS	Agricultural Research Service
CFR	Code of Federal Regulations
CI	Counterintelligence
CNSIS	Classified National Security Information Staff
CUI	Controlled Unclassified Information
DHS	Department of Homeland Security
DOS	Department of State
DR	Departmental Regulation
E.O.	Executive Order
FBI	Federal Bureau of Investigation
FVA	Foreign Visits and Assignments
GRS	General Records Schedule
ISC	Interagency Security Committee
IT	Information Technology
LPR	Lawful Permanent Resident
MOA	Memorandum of Agreement
NARA	National Archives and Records Administration
NCSC	The National Counterintelligence and Security Center
NSPM	National Security Presidential Memorandum
ODNI	Office of the Director of National Intelligence
OHS	Office of Homeland Security
OHSEC	Office of Homeland Security and Emergency Coordination (Now OHS)
OSEC	Office of the Secretary
PDSD	Personnel and Document Security Division (OHS Component)
POC	Point of Contact
R&D	Research and Development
U.S.	United States
U.S.C.	United States Code
USDA	United States Department of Agriculture

APPENDIX B

DEFINITIONS

Collaboration. Individuals, groups, or organizations working with USDA through partnerships, agreements, or formal arrangements for the purpose of mutually agreed upon objectives.

Continuous Vetting. The ongoing assessment of an individual, at any time, to determine whether the individual continues to meet the requirements for employment or assignment.

Controlled Unclassified Information (CUI). Unclassified information that requires safeguarding and dissemination controls pursuant to law, regulation, or Governmentwide policy, as listed in the NARA [CUI Registry website](#).

Designated Agency POC. The individual who has been assigned the responsibility and accountability to carry out foreign access management for their agency.

Designated FVA POC. The individual who has been assigned the responsibility and accountability to carry out foreign visits and assignments management for their agency.

Dual U.S. Citizen. Dual citizenship (or dual nationality) means a person may be a citizen of the United States and of another country at the same time.

Facility Security Committee Chairperson. The highest-ranking official of the primary occupant agency of a Federal facility, or alternatively, a designee selected by mutual agreement of tenant agency officials.

Foreign Access. A potentially exploitable proximity to or ability by non-U.S. Citizens to access information, personnel, systems, technologies, facilities, resources, and programs that expose an organization to loss or compromise.

Foreign Visits and Assignments (FVA). The management of risks and threats and accompanying protective measures, focused on mission critical engagement with foreign representatives or foreign counterparts. With non-U.S. Citizen screening at its nucleus: log, track, correlate, analyze, and assess all non-U.S. Citizen access to personnel, information, facilities, programs, and systems to identify, prepare for, and mitigate the security risks.

Foreign National (or Non-U.S. Citizen). A person who was born outside the jurisdiction of the United States, who is subject to some foreign government, and who has not been naturalized under U.S. law.

Foreign National Assignment (or Non-U.S. Citizen Assignment). A non-U.S. Citizen working at a USDA facility in the U.S., whether onsite or remotely, whose assignment requires access to CUI or protected information, restricted spaces, or the USDA IT architecture. This applies to Federal employees and any category of non-Federal person working with USDA, such as a J-1

Visa Exchange Visitor, consultant, contractor, cooperator, affiliate, advisor, fellow, volunteer, student, intern, or research collaborator. This also includes university affiliated individuals that may have such access during collaborations with USDA.

Foreign National Visit (or Non-U.S. Citizen Visit). A non-U.S. Citizen who is visiting a USDA facility in the U.S. and who will not have access to CUI or protected information, restricted spaces, or the USDA IT architecture. All non-U.S. Citizen visitors must be escorted at all times by a USDA Federal employee, or as deemed appropriate by their facility Security Plan or local operating procedures.

Host. A USDA Federal employee who is hosting a non-USDA employee or contractor who will access a USDA facility, program, system, or information. Hosts are responsible for ensuring adherence to all related security requirements.

J-1 Visa Exchange Visitor. A non-immigrant visa issued by the United States to research scholars, professors, and exchange visitors participating in programs that promote cultural exchange, especially to obtain medical or business training within the United States

Lawful Permanent Resident (LPR). As defined by the Department of Homeland Security (DHS), lawful permanent residents (LPR), also known as “green card” holders, are non-U.S. citizens who are lawfully authorized to live permanently within the United States. LPRs may accept an offer of employment without special restrictions, own property, receive financial assistance at public colleges and universities, and join the Armed Forces. They also may apply to become U.S. citizens if they meet certain eligibility requirements. Name trace checks will be conducted on all LPRs regardless of the amount time spent residing in the U.S.

Name Trace. A vetting process that includes making queries against existing intelligence community and law enforcement databases to identify potential issues from a national security, counterintelligence, anti-terrorism, or insider threat perspective.

State Sponsors of Terrorism. Countries that the Department of State has listed as State Sponsors of Terrorism because of their identified sponsorship of groups and or activities supporting terrorism or terrorist activities.

Visitor. Any individual entering a USDA operated facility that does not possess a USDA issued identification badge.

APPENDIX C

AUTHORITIES AND REFERENCES

[5 CFR § 2635](#), *Standards of Ethical Conduct for Employees of the Executive Branch*

[7 CFR § 2.95](#), *Director, Office of Homeland Security*

Counterintelligence Enhancement Act of 2002, Public Law 107-306, [Title IX](#), *Counterintelligence Activities*, November 27, 2002, codified at [50 U.S.C. § 3382](#), as amended

DHS, [Cybersecurity and Infrastructure Security Agency](#), Interagency Security Committee, *Facility Access Control, An Interagency Security Committee Best Practice*, 2020 Edition

DOS, [State Sponsors of Terrorism](#) website

[E.O. 12977](#), *Interagency Security Committee*, October 19, 1995

[E.O. 13556](#), *Controlled Unclassified Information*, November 4, 2010

FBI, [Field Offices](#) webpage

Memorandum of Agreement (MOA) between the Department of Homeland Security (DHS), Office of the Chief Security Officer, and the United States Department of Agriculture (USDA), OHSEC, December 15, 2016

National Archives and Records Administration (NARA), [CUI Registry](#) website

NARA, [General Records Schedule 5.6: Security Records](#), April 2020

[National Security Presidential Memorandum \(NSPM\) 33](#), *United States Government-Supported Research and Development National Security Policy*, January 14, 2021

Office of the Director of National Intelligence (ODNI), [National Counterintelligence Strategy for the United States of America](#), 2016

ODNI, National Counterintelligence and Security Center (NCSC), [Countering Foreign Intelligence Threats: Implementation and Best Practices Guide](#), June 2017

Office of the National Counterintelligence Executive, [Defensive Counterintelligence Program Blueprint](#), 2010

USDA, [DR 3080-001](#), *Records Management*, August 16, 2016

USDA, [DR 3440-002](#), *Control and Protection of “Sensitive Security Information,”* January 30, 2003

USDA, [DR 4070-735-001](#), *Employee Responsibilities and Conduct*, October 4, 2007

APPENDIX D

SAMPLE MEMORANDUM

APPROVAL REQUEST FOR A VISIT OR ASSIGNMENT BY A NON-U.S. CITIZEN FROM A COUNTRY ON THE STATE SPONSORS OF TERRORISM LIST

Date:

To: (Agency Administrator, or equivalent)
(Title, Mission Area, agency, staff office)

From: (Name of Designated Agency POC)
(Title, Agency)

Subject: APPROVAL REQUEST FOR A VISIT OR ASSIGNMENT BY A NON-U.S.
CITIZEN FROM A COUNTRY IDENTIFIED ON THE STATE SPONSORS OF
TERRORISM LIST

Access requests to a USDA facility in the U.S., restricted spaces, or Controlled Unclassified Information (CUI) or protected information, for non-U.S. Citizens from a country listed on the Department of State's State Sponsors of Terrorism website, require approval before the visit can be approved. Request details are provided below. Additional language may be attached to elaborate on the purpose or justification for the visit or assignment.

INDIVIDUAL'S FULL NAME:

COUNTRY OF CITIZENSHIP:

USDA FACILITIES TO BE ACCESSED:

ANTICIPATED VISIT START AND END DATES:

PURPOSE OF ACCESS (INCLUDE ANY CUI or PROTECTED INFORMATION THAT
WILL BE DISCUSSED):

AGENCY JUSTIFICATION FOR ACCESS (Include desired outcome, extraordinary need
for the visit or skills, how USDA will benefit from the visit):

IS ACCESS TO USDA IT NETWORK REQUIRED? YES ☐ or NO ☐

HAS OHS COMPLETED THE NAME CHECK PROCESS? YES ☐ or NO ☐

WAS THE NAME CHECK RESULT FAVORABLE? YES ☐ or NO ☐

Information regarding the name trace check can be obtained from USDA's Office of Homeland Security (OHS). A security clearance may be required to discuss results.

The non-U.S. Citizen will be escorted at all times while in a USDA facility by a Federal employee. Subject matter advice, including questions on the purpose and justification pertaining to this visit, can be obtained from the following onsite host:

Name of Host: _____ Organization: _____

Signature of Host: _____ Telephone Number: _____

,

AUTHORIZATION

I certify that I have reviewed the request for the above non-U.S. Citizen and considered all the sensitivity factors associated with the requested access to USDA sites, programs, information, or technologies. I have sought additional advice from the on-site Host, agency or office FVA POC, or OHS, when appropriate, to address any concerns to my satisfaction. My determination is consistent with the professional standards and practices used to ensure any risk to the Government associated with access approval is appropriately identified and evaluated.

By checking APPROVED below, I certify that, in my opinion, the benefits to USDA are greater than the risks associated with the presence of the non-U.S. Citizen and that all DR related terms and conditions associated have been met.

By checking DENIED below, I certify that, in my opinion, the risks associated with the presence of the non-U.S. Citizen outweigh the benefits to USDA.

Name of Approving Official (Agency Administrator, or equivalent):

Signature of Approving Official:

Visit or assignment has been: APPROVED ☐ DENIED ☐